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Case Number: 26TRCV00714 Hearing Date: August 13, 2026 Dept: B

Moving Parties: Defendants

Internet Law Center Ltd. and Bennet Kelley

Responding Party: Plaintiff

Gai Toi Williams

Demurrer and Motion

to Strike

The Court considered the moving, opposition, and reply papers.

RULING

See below.

BACKGROUND

On February 25, 2026, plaintiff Gai Toi Williams filed a complaint against defendants Bennet Kelley and Internet Law Center Ltd for (1) fraud or deceit in concealment, (2) professional negligence (legal malpractice), and (3) breach of fiduciary duty.

LEGAL AUTHORITY

Demurrer

When

considering demurrers, courts read the allegations liberally and in context. *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal. App. 4th 1216, 1228. "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." *SKF Farms v. Superior Court* (1984) 153 Cal. App. 3d 902, 905. "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747.

Strike

"The court may, upon a motion . . . , or at any time in its discretion, and upon terms it deems proper: (a) Strike any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." CCP §436(b).

CCP §431.10 states:

"(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense. (2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense. (3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An 'immaterial allegation' means 'irrelevant matter' as that term is used in Section 436."

The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP §437.

DISCUSSION

Demurrer

Defendants

Bennet Kelley and Internet Law Center Ltd. (self-represented) demur to the first, second, and third causes of action in the complaint on the grounds that they fail to state sufficient facts to constitute a cause of action and are uncertain.

The complaint alleges that defendant Bennet Kelley is a licensed California attorney. Complaint, ¶6. In the early 2000s, Kelley first had a spam email case against Dan Balsam. Id., ¶12. Kelley's website states that since 2003, Kelley has "sparred with Balsam over California's spam law." Id., ¶13. In early 2018, plaintiff hired Balsam and another attorney named Jacob Harker ("B&H") to represent her in various spam email matters. Id., ¶15. From early 2018 through 2021, plaintiff had referred several of her friends and family members to B&H. Id., ¶16. Some of the people who plaintiff referred to B&H ended up hiring B&H to file malpractice actions against their former spam attorneys Sheehan, Heit, and Feaver ("SFH"). Id., ¶17. On October 28, 2021, SFH filed a lawsuit against plaintiff and B&H in retaliation for B&H representing SFH's unhappy former clients in the malpractice actions and in retaliation for plaintiff's referrals of some of those unhappy former clients to B&H ("SFH malicious SLAPP action"). Id., ¶18. Unbeknownst to plaintiff, in 2021, defendant Kelley provided material assistance to SFH to help them prepare and litigate the SFH malicious SLAPP action. Id., ¶20. On January 10, 2022, B&H filed an anti-SLAPP motion. At that time, plaintiff had not been served in the SFH malicious SLAPP action and did not join in the anti-SLAPP motion. Id., ¶21. On June 8, 2022, the anti-SLAPP motion was granted. Id., ¶22. As of the filing date of the herein complaint, the SFH malicious SLAPP action is still pending against plaintiff. Id., ¶24.

The

complaint further alleges that in early 2023, plaintiff was referred to Kelley to investigate any claims that she may have against B&H. Id., ¶25. Since Kelley still held animus towards Balsam, Kelley agreed to

represent plaintiff ("B&H representation").

The scope of the B&H representation was expressly limited to plaintiff's potential claims against B&H.

Id., ¶26. Kelley never told

plaintiff that he had assisted SFH in the SFH malicious SLAPP action. Id., ¶27.

Kelley ultimately terminated the B&H representation. Id., ¶28.

The

complaint further alleges that in early 2023, during the course of the B&H representation, Kelley contacted plaintiff and informed her that Sheehan and Heit ("SH") wanted to discuss purchasing damaging testimony against B&H from plaintiff ("SH witness tampering scheme").

Kelley told plaintiff that he would represent her in negotiations with Sheenan and Heit ("SH representation").

Id., ¶29. Kelley and plaintiff

did not have a written agreement for the SH representation. Id., ¶30.

Plaintiff participated in a telephone call with Kelley and SH wherein SH proposed paying plaintiff to provide a declaration which, in effect, would state that plaintiff had committed a crime along with B&H. Id., ¶31.

SH memorialized this proposal in an email to Kelley, which Kelley forwarded to plaintiff. Id., ¶32. At that time, the SFH malicious SLAPP action was ongoing and Harker was plaintiff's attorney of record. Id., ¶33.

Kelley never informed plaintiff that the SH witness tampering scheme was likely illegal. Id., ¶34. Kelley never informed plaintiff that it could be damaging to her credibility if she accepted money to provide testimony instead of simply responding to any discovery in the SFH malicious SLAPP action. Id., ¶35. Kelley never informed plaintiff of the potential dangers associated with signing a declaration, under penalty of perjury, stating that she committed a crime.

Id., ¶36. Kelley never attempted

to settle SH's claims against plaintiff in the SFH malicious SLAPP action. Id., ¶37.

Kelley never did any of these things because he did not care about plaintiff. Instead, he cared about

harming Balsam and was willing to assist SH and throw plaintiff "under the proverbial bus" in order to damage Balsam.

Id., ¶38. Kelley never terminated

the SH representation and plaintiff never discharged him. Id., ¶39.

The

complaint further alleges that on May 29, 2024, Heit filed for bankruptcy. Id., ¶40.

On February 25, 2025, plaintiff first learned of Kelley's participation in the SFH malicious SLAPP action. Id., ¶42. Plaintiff has suffered from emotional distress after learning that Kelley assisted SFH in litigating the SFH malicious SLAPP action against her. Id., ¶43.

First cause of action for fraud
or deceit in concealment

"The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of fact."

Hambridge v. Healthcare Partners Medical Group, Inc. (2015) 238 Cal. App. 4th 124, 162 (citation omitted).

"One who willfully deceives another with intent to induce him to alter his position to his injury or risk, is liable for any damage which he thereby suffers." Civil Code §1709.

"[T]o establish fraud through nondisclosure or concealment of facts, it is necessary to show the defendant 'was under a legal duty to disclose them.'" OCM Principal Opportunities Fund v. CIBC World Markets Corp. (2007) 157 Cal. App. 4th 835, 845. Nondisclosure or concealment may constitute actionable fraud when: (1) there is a fiduciary relationship between the parties; (2) the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) the defendant actively conceals a material fact from the plaintiff; and (4) the defendant makes partial representations but also suppresses some material facts. Los Angeles Memorial Coliseum Commission v. Insomniac, Inc. (2015) 233 Cal. App. 4th 803, 831.

The complaint alleges that defendants intentionally failed to disclose to plaintiff that Kelley assisted SFH in the SFH malicious SLAPP action. Complaint, ¶46. Plaintiff did not know that Kelley had assisted SFH. Id., ¶47. Defendants intended to deceive plaintiff by concealing the fact that Kelley assisted SFH. Id., ¶48. Had the omitted

information been disclosed, plaintiff reasonably would have behaved differently. Plaintiff would never have hired Kelley to represent her in the SH representation. Id., ¶49. Plaintiff was harmed.

Specifically, plaintiff lost the opportunity to negotiate a settlement of the SFH malicious SLAPP action and will have to incur costs to continue litigating that action. Id., ¶50. Defendants' concealment was a substantial factor in causing Williams' harm. Id., ¶51.

Defendants

argue that the allegations are conclusory and that the complaint fails to plead with specificity, including as to "material assistance" and as to how plaintiff purportedly became aware on February 25, 2025.

Defendants further assert that plaintiff cannot allege damage and causation as plaintiff alleges that she was represented in the course of the "SFH malicious SLAPP action" by B&H and that it "defies logic" that a "brief tri-party discussion" between SH, Kelley, and plaintiff "somehow deprived" plaintiff's own counsel of the ability to reach a settlement. Defendants also note that the allegation at para. 50 that "plaintiff lost the ability to negotiate a settlement" is false because on November 1, 2023, plaintiff reached a "664.6 enforceable settlement agreement" with Sheehan Group, citing to Request for Judicial Notice, Exh. B.

In

opposition, plaintiff argues that the claim is not uncertain and that the allegations are sufficient.

The

Court finds that the allegations are insufficient. The allegations are conclusory as to "material assistance," which is what the complaint is based on and what plaintiff alleges that Kelley concealed.

Also, the allegations are insufficient as to causation and damages. Plaintiff alleges that had she known that Kelley provided assistance to SFH in the SFH action, she would not have hired him to represent her in the SH matter, and that because she hired Kelley in the SH matter, she lost the opportunity to negotiate a settlement of the SFH action in which she was not represented by Kelley.

The

demurrer is SUSTAINED WITH LEAVE TO AMEND.

Second cause of action for

professional negligence/legal malpractice

The

elements of a claim for professional negligence are (1) the duty to use such skill, prudence, and diligence as members of the profession commonly possess; (2) a breach of that duty; (3) a proximate causal connection between breach and damages, and (4) actual damages. *Schultz v. Harney* (1994) 27 Cal. App. 4th 1611, 1621. An attorney's breach of the ethical duties of good faith and fidelity amounts to malpractice and is actionable. *Id.* "In a litigation malpractice action, the plaintiff must establish that but for the alleged negligence of the defendant attorney, the plaintiff would have obtained a more favorable judgment or settlement in the action in which the malpractice allegedly occurred. The purpose of this requirement, which has been in use for more than 120 years, is to safeguard against speculative and conjectural claims. It serves the essential purpose of ensuring that damages awarded for the attorney's malpractice actually have been caused by the malpractice. . . . [T]he crucial causation inquiry is what would have happened if the defendant attorney had not been negligent. This is so because the very idea of causation necessarily involves comparing historical events to a hypothetical alternative." *Viner v. Sweet* (2003) 30 Cal.4th 1231, 1241-1242.

The

complaint alleges that defendant's wrongful acts began some time in or around early 2023 when they agreed to the SH representation without disclosing Kelley's participation in the SFH malicious SLAPP action, and continued through the present day because the SH representation was never terminated. Plaintiff learned of the fraud on February 25, 2025. *Id.*, ¶53. Plaintiff suffered actual injury when defendants, with respect to the SH representation acted against plaintiff's interests in the SH witness tampering scheme, failed to advise plaintiff on the dangers of participating in the SH witness tampering scheme, and failed to assist in negotiating a settlement of the SFH malicious SLAPP action. *Id.*, ¶54.

Defendants

argue that the claim is barred by the one-year statute of limitation under CCP §340.6. Defendants assert that there is no allegation of defendants performing any further work beyond 2023. Defendants contend that tolling under the continued representation exception does not depend on formal termination or withdrawal. Defendants also argue that

plaintiff cannot establish damage or causation as plaintiff was represented by B&H, and not Kelley, and that on November 1, 2023, plaintiff entered into a settlement agreement, citing to RJN.

In

opposition, plaintiff argues that she sufficiently pled delayed discovery and that the representation was continuing.

Plaintiff also argues that “injury” is a question of fact and that “emotional distress” damages are properly pleaded. Plaintiff further disputes that there was a binding settlement of the underlying action.

The

Court finds that the allegations are insufficient and the claim appears barred by the one-year statute of limitations. Under CCP §340.6, “[a]n action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first.” The allegations are conclusory as to how and under what circumstances plaintiff discovered that defendants had “materially helped” SFH in the “SFH malicious SLAPP action.” Further, the allegations are insufficient as to continued representation to toll the statute of limitations. The complaint alleges that in 2023, Kelley agreed to represent plaintiff in the “B&H representation”; the scope of the B&H representation was expressly limited to plaintiff’s potential claims against B&H; and Kelley ultimately terminated the B&H representation. See Complaint, ¶¶25-28. The complaint states that Williams told

Kelley “that he would represent her in negotiations” with Sheehan and Heit on the proposed criminal witness tampering scheme.

Id., ¶29. The parties did not

have a written agreement for this representation, which consisted of a phone call and some emails in 2023. Id., ¶¶

29-39. Plaintiff asserts that the

attorney-client relationship on the SH matter is still ongoing because it was never terminated, even though no work has been performed in three years. See id. ¶39.

Further, the allegations are insufficient as to breach and damages. Plaintiff alleges that she suffered actual injury when Kelley acted against her interests in the SH matter by failing to advise her of the dangers of participating in the witness tampering scheme (there are no allegations that she ultimately participated), and failed to assist her in negotiating a settlement of the SFH action, in which he did not

represent her.

The
demurrer is SUSTAINED WITH LEAVE TO AMEND.

Third cause of action for breach
of fiduciary duty

The
complaint alleges the same as under the second cause of action.

Defendants
argue the same as under the second cause of action that the claim is barred by
the one-year statute of limitations and cannot establish damage or causation.

The
demurrer is SUSTAINED WITH LEAVE TO AMEND for the same reasons as under the
second cause of action.

Motion to Strike

Defendants request an order striking the following
paragraphs: 3, 12, 13, 14, 26, 33, 34,
35, 36, 38, 54, 66, 72, 75, and 76.

The Court notes that defendants improperly combined the
demurrer and motion to strike. A motion
to strike is required to be filed separately along with a filing fee.

Defendants contend that the first category of allegations
relate to the past history and animus between Kelley and Balsam (who is not
counsel or a party) are speculative and inflammatory. Defendants assert that the second category of
allegations are inflammatory characterizations relating to the declaration that
the Sheehan Group proposed but plaintiff did not sign and any potential
liability stemming therefrom.

In opposition, plaintiff argues that the challenged
allegations are relevant.

The Court finds that there is no ground for striking the

allegations. The motion is DENIED.

ORDER

The demurrer is SUSTAINED WITH TWENTY DAYS LEAVE TO AMEND as to the first, second, and third causes of action in the complaint.

The motion to strike is DENIED.

Defendants are ORDERED to pay a \$60 filing fee for the motion to strike.

Defendants are to give notice of the ruling.